

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sophia Manuel	Team: Team # 4	CCRB Case #: 201306080	☒ Force ☒ Abuse	☒ Discourt. ☒ O.L.	☐ U.S. ☐ Injury
Incident Date(s) Thursday, 07/04/2013 6:30 PM	Location of Incident: § 87(2)(b)	Precinct: 81	18 Mo. SOL 1/4/2015	EO SOL 1/4/2015	
Date/Time CV Reported Tue, 07/09/2013 9:48 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/09/2013 9:48 AM		

Complainant/Victim	Type	Home Address

[illegible]

Subject Officer(s)	Shield	TaxID	Command
1. POM Ross Garner	21542	949007	081 PCT
2. SGT Forrest Hirsch	01210	941905	081 PCT
3. POM William Sitzman	05064	939474	081 PCT
4. POF Malerie Treuman	04360	939603	081 PCT
5. POM Jonathan Thomas	09859	948146	081 PCT
6. LT Thomas Passolo	00000	924312	081 PCT
7. LT Isa Abbassi	00000	918669	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Conrad Narcisse	07812	948103	081 PCT
2. SGT Thomas Hunter	02534	915925	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
3. SGT Lakeisha Smith	04391	937557	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Ross Garner	Abuse: PO Ross Garner entered § 87(2)(b) in Brooklyn.	
B.SGT Forrest Hirsch	Abuse: Sgt. Forrest Hirsch entered § 87(2)(b) in Brooklyn.	
C.POF Malerie Treuman	Discourtesy: PO Malerie Treuman spoke rudely to § 87(2)(b) and § 87(2)(b)	
D.POM William Sitzman	Abuse: PO William Sitzman searched § 87(2)(b) in Brooklyn.	
E.SGT Forrest Hirsch	Off. Language: Sgt. Forrest Hirsch made remarks to § 87(2)(b) based upon race.	
F.LT Isa Abbassi	Abuse: Lt. Isa Abbassi threatened to arrest § 87(2)(b)	
G.LT Thomas Passolo	Abuse: Lt. Thomas Passolo threatened to arrest § 87(2)(b)	
H.LT Isa Abbassi	Abuse: Lt. Isa Abbassi entered and searched § 87(2)(b) in Brooklyn.	
I.LT Thomas Passolo	Abuse: Lt. Thomas Passolo entered and searched § 87(2)(b) in Brooklyn.	
J.POM Jonathan Thomas	Abuse: PO Jonathan Thomas entered § 87(2)(b) in Brooklyn.	
K.POM Jonathan Thomas	Force: PO Jonathan Thomas used physical force against § 87(2)(b)	
L.POM Jonathan Thomas	Discourtesy: PO Jonathan Thomas spoke rudely to § 87(2)(b)	
M.LT Isa Abbassi	Abuse: Lt. Isa Abbassi threatened to damage § 87(2)(b)'s property.	
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 9, 2013, § 87(2)(b) called the CCRB and filed this complaint (encl. 27-30a). She did not witness the incident. On July 4, 2013, at approximately 6:30 p.m., officers entered § 87(2)(b)'s backyard, located at § 87(2)(b) in Brooklyn. They arrested § 87(2)(b) and § 87(2)(b). The following allegations resulted:

- **Allegation A- Abuse of authority: PO Ross Garner entered § 87(2)(b) in Brooklyn.**
§ 87(2)(g)
§ 87(2)(g)
- **Allegation B- Abuse of authority: Sgt. Forrest Hirsch entered § 87(2)(b) in Brooklyn.**
§ 87(2)(g)
§ 87(2)(g)
- **Allegation C- Discourtesy: PO Malerie Treuman spoke rudely to § 87(2)(b) and § 87(2)(b)**
- **Allegation D- Abuse of authority: PO William Sitzman searched § 87(2)(b) in Brooklyn.**
§ 87(2)(g)
§ 87(2)(g)
- **Allegation E- Offensive language: Sgt. Forrest Hirsch made remarks to § 87(2)(b) based upon race.**
§ 87(2)(g)
§ 87(2)(g)
- **Allegation F- Abuse of authority: Lt. Isa Abbassi threatened to arrest § 87(2)(b)**
§ 87(2)(b)
- **Allegation G- Abuse of authority: Lt. Thomas Passolo threatened to arrest § 87(2)(b)**
§ 87(2)(b)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation H- Abuse of authority: Lt. Isa Abbassi entered and searched § 87(2)(b) in Brooklyn.**
- **Allegation I- Abuse of authority: Lt. Thomas Passolo entered and searched § 87(2)(b) in Brooklyn.**
§ 87(2)(g)
§ 87(2)(g)
- **Allegation J- Abuse of authority: PO Jonathan Thomas entered § 87(2)(b) in Brooklyn.**
§ 87(2)(g)
§ 87(2)(g)
- **Allegation K- Force: PO Jonathan Thomas used physical force against § 87(2)(b)**
§ 87(2)(g)

- **Allegation L- Discourtesy: PO Jonathan Thomas spoke rudely to** § 87(2)(g)
§ 87(2)(g)
- **Allegation M- Abuse of authority: Lt. Isa Abbassi threatened to damage** § 87(2)(b)
§ 87(2)(b) s property.
§ 87(2)(g)
- § 87(4-b) § 87(2)(g)

This case was not eligible for mediation.

Results of Investigation

Audio Recording

§ 87(2)(b) provided a CD to the CCRB during her interview on July 30, 2013 (encl. 43). The CD was prepared by § 87(2)(b) and contained two audio files which were captured by § 87(2)(b) on her cell phone on July 4, 2013.

At 00:04:55 in the first file, a voice, which Lt. Isa Abbassi identified as his own, says to § 87(2)(b) "This is your home correct? These young men were supposed to explain to you. What I'm gonna do is, just for the sake of diplomacy and not having an issue. This is the 4th of July. We don't wanna ruin your holiday. We don't want this to turn into a disaster, which it has the potential to. The young man that ran into your house, that you're trying to protect, needs to come out here. He's gonna get a ticket and he's gonna go on his way. Otherwise, you're going to be arrested for obstructing us for going after him. Your husband is. And so is he."

At 00:09:40 in the first file, a voice, which Lt. Abbassi identified as his own, says to § 87(2)(b) "As far as I'm concerned, he ran in and you're gonna get arrested if you don't--" § 87(2)(b) interrupts, "I'm not getting arrested." Lt. Abbassi says, "Yea, you are. You are. It's either him or you." § 87(2)(b) says, "I can't give you something that's not here...I'm not obstructing anything." Lt. Abbassi says, "You're obstructing the officers from going in the house."

At 00:12:35, § 87(2)(b) and § 87(2)(b) shout at the people inside the house to come out.

From 00:14:42 to 00:16:30, voices argue with officers about how many officers can enter the house. § 87(2)(b) shouts, "They're not all going."

From 00:16:30 to 00:21:25, there is calm, with the sounds of children playing and police radio chatter.

At 00:21:35 in the first file, someone asks officers if they can shut the doors. A voice, which PO Jonathan Thomas identified as his own, says, "No, we can't shut the door because there are fellow officers inside." § 87(2)(b) says, "I understand because it's protocol because they gotta make sure they have a way to get back out. I totally get it. It's ok."

Civilian Statements

Victim: § 87(2)(b)

- At the time of the incident, § 87(2)(b) was § 87(2)(b) old. He is a black male, 5'7" tall and 150 pounds, with brown hair and black eyes. § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on July 26, 2013 (encl. 31-36). On July 4, 2013, at approximately 6:30 p.m., § 87(2)(b) was having a barbeque in the backyard of his house, located at § 87(2)(b) in Brooklyn. § 87(2)(b) resides in § 87(2)(b) with his girlfriend, § 87(2)(b) and his parents. His sister, § 87(2)(b) and her daughter, § 87(2)(b) reside in § 87(2)(b). There is a sliding gate on § 87(2)(b) which leads to the backyard shared by § 87(2)(b) both of which are owned by § 87(2)(b)'s parents. The backyard is the primary entrance to the houses and does not open to any other yards. There were about 13 adults and several children in the backyard, four people in the kitchen of § 87(2)(b) and several people inside of § 87(2)(b). There were several other guests on the sidewalk of § 87(2)(b). There were no drugs at the barbeque. There was no marijuana. § 87(2)(b) never smelled marijuana. People were smoking cigarettes, but no hand-rolled cigarettes.

§ 87(2)(b) was by the backdoor of § 87(2)(b) when he heard from behind him his friend, § 87(2)(b) say, "Excuse me. Why are you coming here?" § 87(2)(b) turned around and saw three officers inside the backyard. He approached a 6'2" tall, muscular white male officer in uniform, identified by the investigation as PO Ross Garner, and said, "Officer, this is my property. What's going on? What's the problem?" A white, 5'6" tall, thin, female officer in uniform, identified by § 87(2)(b) as PO Malerie Treuman based on her name plate, said, "It's a fucking noise complaint." PO Garner said, "Someone ran back there." A white male officer in uniform, 5'8" tall, with a heavy build, identified by § 87(2)(b) as PO William Sitzman based on his name plate, joined the conversation.

§ 87(2)(b) exited the house and asked the officers what was going on. PO Treuman said, "Cut the fucking music down. It's a fucking noise complaint." § 87(2)(b) told the guests to turn the music off, and the music was turned off. § 87(2)(b) asked, "Ok what is the problem?" because more and more officers were coming into the backyard. PO Treuman said, "No, I'm coming in here," and walked to the backdoor of § 87(2)(b). The officers said that they were pursuing someone who ran into the house. Other officers walked towards the backdoor of the house and seemed to be about to enter the house. § 87(2)(b) explained to the officers that it was a barbeque and many people were coming and going, but no one ran into the house. § 87(2)(b) announced to the guests that she was going to handle the situation. She told the guests to calm down and put their hands in front of them, to keep them visible. The guests complied.

More officers approached the backdoor, as if they were about to enter the house. § 87(2)(b) told the officers that she was happy to work with them, but she would not let them in her house. Two officers, identified by the investigation as Lt. Thomas Passolo and Lt. Isa Abbassi, arrived. Lt. Passolo was a white male in plainclothes, 5'6" tall, with a bald head. Lt. Abbassi was a tall Hispanic male wearing a white shirt.

At this point, there were about 25 officers present. Fifteen officers were in the backyard, all insisting on entering the house. § 87(2)(b) told § 87(2)(b) and his friend, § 87(2)(b) to stand in front of the backdoor and prevent the officers from entering. § 87(2)(b) and § 87(2)(b) stood in front of the door. § 87(2)(b) saw that a male officer, whom he identified as Sgt. Forrest Hirsch based on his name plate, was looking at him and trying to get his attention. Sgt. Hirsch was described as a 5'7" tall, white male. Sgt. Hirsch said to him, "Fucking nigger," "You coon," "You gorilla," "You

monkey,” and he made monkey noises. § 87(2)(b) put his arm around § 87(2)(b) s shoulder and put his hand over § 87(2)(b) s mouth. An unidentified uniformed officer was standing next to Sgt. Hirsch and a black male officer with a mohawk, identified by § 87(2)(b) as PO Jonathan Thomas based on his name plate, were standing about six feet away. A guest named § 87(2)(b) (the investigation determined that her last name was § 87(2)(b) was standing next to PO Thomas, recording the interaction. § 87(2)(b) said to § 87(2)(b) “§ 87(2)(b), show him that you are intelligent. You weren’t raised like that.” She said to Sgt. Hirsch, “We’re not in that class of ignorance, officer.” § 87(2)(b) smirked at Sgt. Hirsch and said to him, “Do you feel comfortable as a man at the end of the day?” Sgt. Hirsch stared at him and said nothing. § 87(2)(b) s older brother, § 87(2)(b) entered the backyard. He said to the officers, “You say someone ran into the house? I’m going to let you in the house. You are going to go with me, but all of you are not going in.” § 87(2)(b) called into the house for everyone in the kitchen to come outside. § 87(2)(b) (§ 87(2)(b) s friend), and two or three children exited the house. § 87(2)(b) took PO Garner, Lt. Passolo, and Lt. Abbassi into the house. PO Thomas shouted, “No, I’m getting in there,” and grabbed § 87(2)(b) s arm. He said, “Move. I’m getting in this house. I gotta back up my sergeant.” § 87(2)(b) who was now sitting in a chair next to the backdoor, stood up and said, “Yo back up on my sister. What are you doing?” PO Thomas said to § 87(2)(b) “Back the fuck up,” and pushed his chest with two hands. PO Thomas said to the crowd, “Back up. I don’t want anyone to get hurt. I’m going inside.” § 87(2)(b) told the crowd to sit down. PO Thomas did not enter the house.

After 10-15 minutes, § 87(2)(b) PO Garner, Lt. Abbassi, and Lt. Passolo exited the house. § 87(2)(b) was sitting down and someone put his son in his lap. Lt. Passolo asked § 87(2)(b) for his identification. § 87(2)(b) gave his son to his friend and asked why Lt. Passolo wanted identification and explained that it was his house, so the identification was inside. Lt. Passolo suggested that he and § 87(2)(b) go into the house. § 87(2)(b) said, “No, I’ll go get it for you.” He stood up, and Lt. Passolo immediately told him to put his hands behind his back. Lt. Passolo walked around behind § 87(2)(b) § 87(2)(b) kept his hands in front of him and asked why. Lt. Passolo said, “Obstruction of justice,” and pulled § 87(2)(b) s arm behind his back and handcuffed one wrist. The other hand was at his side. Lt. Passolo asked for the other arm. § 87(2)(b) said, “Officer, you just asked me for my ID. I was never resisting arrest.” PO Garner immediately came over and grabbed the back of § 87(2)(b) s neck and kneed the back of his knee, causing § 87(2)(b) s knees to buckle. § 87(2)(b) said, “What are you doing? You asked me for ID.” PO Garner said, “Obstruction of justice.” Another male officer grabbed § 87(2)(b) s ankle and said, “Are you resisting arrest?” § 87(2)(b) said, “No. He asked me for my ID. I said I was gonna go get it. I never said nothing else.” The officers lifted § 87(2)(b) off the ground, in the air. While he was in the air, the handcuffs were put on the other wrist. The officers put § 87(2)(b) down, walked him out of the yard, placed him in a van, where he saw his friend, § 87(2)(b) who had also been arrested.

Victim: § 87(2)(b)

- At the time of the incident, § 87(2)(b) was § 87(2)(b) old. She is a black female with brown/grey hair and brown eyes. She is 5’4” tall and weighs 117 pounds. § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on July 26, 2013 (encl. 38-46). Her statement was consistent with the telephone statement she provided to the CCRB on July 22, 2013 (encl. 37). She provided additional details during a telephone statement on March 21, 2014

(encl. 46a). On July 4, 2013, § 87(2)(b) was in the kitchen of § 87(2)(b). The fence around the backyard and driveway was closed and locked with a padlock. A small door in the fence was open. The fence is approximately 7 feet tall and stretches from the brownstone to the building on the other side of the driveway. It has white paneling on it, preventing people outside from seeing inside. There might be barbed wire across the top.

§ 87(2)(b) exited the kitchen because she heard a commotion in the backyard. She saw § 87(2)(b) standing in front of the gate to the backyard. His friends were to his left, right, and behind him. They were telling police officers to wait. No one smoked marijuana at the party. Some people were smoking cigarettes.

§ 87(2)(b) approached the group and stood between the civilians and the officers. She said to a 5'5" tall female officer in uniform with an average build and a ponytail, identified by the investigation as PO Treuman, "I live here. What's going on?" PO Treuman said, "We got a noise complaint for the music." § 87(2)(b) told her guests to turn the music off. The music was turned off. More officers came and entered the backyard through the gate.

§ 87(2)(b) said to them, "Wait. Where are you going?" An unidentified officer said, "I'm going in the house." § 87(2)(b) asked why they were going inside the house. The officer said, "Because I need to." They argued for a minute about entering the house. § 87(2)(b) asked PO Treuman why they needed to enter, and PO Treuman said, "I'm back-up." A Hispanic or white male uniformed officer, 5'5" tall with an average build and black hair, identified by the investigation as Sgt. Hirsch, said, "Listen. Someone was on the side of your house rolling a blunt." § 87(2)(b) said, "What does that have to do with here?" An officer, identified by the investigation as PO Sitzman, put his hands in the garbage, food, and grill. He was described as a 5'5" tall, stocky, white male officer in uniform with a bald head. He first removed the lid from the garbage can and put his hand inside. Then he took the lids off of several containers of food and put his hand inside, moving around the food. He opened the grill, but § 87(2)(b) could not see what he did with the grill.

§ 87(2)(b) said to the officers, "I'm not gonna let you into my home until you get a warrant." She again asked the officers to leave.

A very tall, 40-year-old white male officer with brown hair and an average build in a white shirt and uniform, identified by the investigation as Lt. Abbassi, entered the backyard and asked § 87(2)(b) for her identification. He said, "My officers said they saw something. What did they see?" § 87(2)(b) said, "That's what I'm trying to find out." Lt. Abbassi talked to the officers and went back to § 87(2)(b). He asked her for her identification again.

§ 87(2)(b) went inside the house, got her identification, and gave it to Lt. Abbassi. He said, "We were told someone was rolling a blunt on the side of the house." § 87(2)(b) told him that there were no drugs and that there were children present. Lt. Abbassi said, "You're going to go to jail for obstruction of justice." § 87(2)(b) said, "No I'm not because I'm not obstructing anything. I asked your officers repeatedly before you came why they were here. They said a noise complaint and we turned the music off." Lt. Abbassi said, "There's someone in the home." § 87(2)(b) said, "The only people in the home you can see here."

When § 87(2)(b) arrived, an officer told him that a man with a white tank top and tattoos on his arms was smoking a joint in the yard and ran inside the house. The officer told § 87(2)(b) that § 87(2)(b) and § 87(2)(b) were going to be arrested for not cooperating. § 87(2)(b) told the officers that if they wanted to go inside his house, they could, but they could not arrest his brother and sister. § 87(2)(b) asked the officers if they would like if everyone inside the house came outside. The officers said yes. § 87(2)(b) yelled inside the house for everyone to come outside. Three adults and two children exited the house.

The officers said that they still wanted to go inside the home. § 87(2)(b) told the

officers to return her identification and leave her property. Lt. Abbassi said, “If you give me a body, any body, then we’ll go and you can enjoy your Fourth.” § 87(2)(b) said, “These kids have done nothing wrong and I’m insulted that you would ask me to do that.” Lt. Abbassi said, “Well then you’re going to jail.”

A white or Hispanic male officer with a bald head, 5’7” tall, wearing plainclothes, identified by the investigation as Lt. Passolo, approached § 87(2)(b) who was sitting down. Lt. Passolo pointed at § 87(2)(b) and § 87(2)(b) § 87(2)(b) said he would let officers into the house. § 87(2)(b) selected four officers who could go in, but § 87(2)(b) took three officers, Lt. Passolo, Lt. Abbassi, and PO Garner, inside § 87(2)(b)

The officers were inside the house for around twenty minutes. § 87(2)(b) stood at the door with § 87(2)(b) § 87(2)(b) closed the door. PO Thomas grabbed her arm and pulled her away from the door. She explained that she understood that the door was supposed to be open while officers are inside, but she wanted it closed so that no more officers would enter. They left the door open.

At one point, Sgt. Hirsch leaned over § 87(2)(b) and called § 87(2)(b) a “nigger,” a “coon,” and a “gorilla.” His friend, § 87(2)(b) was standing behind § 87(2)(b) His other friend, § 87(2)(b) was immediately to her left. Their friend, § 87(2)(b) was standing nearby, videotaping the interaction on her cell phone. § 87(2)(b) said to Sgt. Hirsch, “You will not be disrespectful. You will not say that.” § 87(2)(b) said to § 87(2)(b) “Show him how intelligent you are. Please do not respond.” § 87(2)(b) put his hand over § 87(2)(b) s mouth, and § 87(2)(b) smirked but said nothing.

When the officers exited the house, Lt. Abbassi said to § 87(2)(b) “I’ll give you your ID back.” He said, “If we come back, if the music is turned up one notch higher, we will destroy your equipment, and then we’re gonna come back and we’re gonna destroy your property. And every time we see you, we’re gonna harass you.” Lt. Abbassi returned her identification.

§ 87(2)(b) provided an account of § 87(2)(b) s arrest that was consistent with his account.

Victim: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was § 87(2)(b) old. He is a black male, 5’10” tall, with brown hair and brown eyes. § 87(2)(b)*

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on July 30, 2013 (encl. 52-58). § 87(2)(b) who had been at the barbeque, went to § 87(2)(b) s house, located three blocks away at § 87(2)(b) in Brooklyn, and told him that he was needed at § 87(2)(b) § 87(2)(b) ran to the location.

§ 87(2)(b) approached a tall white male officer in a white shirt, identified by the investigation as Lt. Abbassi, who said that officers told him that a man who was outside smoking a joint ran into the house. A guest told § 87(2)(b) that the officers were trying to enter the house without permission and that § 87(2)(b) was not letting them in. § 87(2)(b) asked Lt. Abbassi what the officers wanted. Lt. Abbassi said, “If I can’t get access to the house, I’m gonna arrest your brother and your sister.” § 87(2)(b) said to Lt. Abbassi, “Whatever you want to do, I will cooperate with you.” Lt. Abbassi told him to tell everybody in the house to come outside. § 87(2)(b) opened the back door to the house and said, “Everybody get the hell out.” Five people exited the house. § 87(2)(b) looked inside, came out, and told Lt. Abbassi that there was nobody else inside.

§ 87(2)(b) said he would let officers enter the house if they did not arrest § 87(2)(b) and § 87(2)(b) § 87(2)(b) asked if only four officers can come in, and Lt. Abbassi

agreed. § 87(2)(b) Lt. Abbassi, and a shorter white male officer in plainclothes, identified by the investigation as Lt. Passolo, entered the house with a white male uniformed officer, identified by the investigation as PO Garner, and an unidentified white male officer in uniform.

When they were inside the kitchen, there was a commotion at the back door because other officers were trying to enter the house, and § 87(2)(b) closed the door and told officers that they could not enter. § 87(2)(b) told § 87(2)(b) to stop. A male officer with three stripes on his sleeve, identified by the investigation as PO Jonathan Thomas, stuck his foot in the door so that it would not close. § 87(2)(b) told PO Thomas that they would keep the door open and asked PO Thomas to stop other officers from entering.

Lt. Passolo went downstairs to the basement. § 87(2)(b) showed Lt. Abbassi and the two other officers the ground level. Lt. Abbassi asked if there was any other way out of the house, and § 87(2)(b) explained that there was a hatch, but it was locked shut. § 87(2)(b) took all four officers up to the next floor, where Lt. Passolo, PO Garner, and the unidentified officer opened all of the doors and closets, but not drawers or cabinets. § 87(2)(b) remembered that Lt. Passolo, in particular, was the officer who opened most or all of the doors.

§ 87(2)(b) was in the bathroom. Lt. Abbassi said that he had to open the bathroom door. § 87(2)(b) who was naked, opened the door. The officers looked inside the bathroom. Then the officers and § 87(2)(b) went downstairs and outside.

§ 87(2)(b)'s account of § 87(2)(b)'s arrest was consistent with that provided by § 87(2)(b).

Witness: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was § 87(2)(b) old. He is a black male, 5'8" tall and 170 pounds, with black hair and brown eyes. He is § 87(2)(b)'s friend.*

CCRB Statement

§ 87(2)(b) was interviewed at § 87(2)(b) in Brooklyn on August 29, 2013 (encl. 66-71). His statement was consistent with his telephone statement to the CCRB on August 9, 2013 (encl. 65a). A 6' tall, light-skinned male officer in uniform with tattoos on both arms, identified by the investigation as PO Garner, told him and § 87(2)(b) that he saw someone rolling marijuana. PO Garner went to open the backdoor to the house, but § 87(2)(b) and § 87(2)(b) stood in the way. PO Garner said that he needed to enter the house because he saw the male with the marijuana go inside the house. They told PO Garner that he could not come inside unless he had a warrant. More officers came to the door and tried to push past them. § 87(2)(b) would not let them in. He said that he did not see anyone enter the house and that the officers needed a warrant.

A short, heavy white male in uniform, identified by the investigation as PO Sitzman, looked inside a garbage can in the backyard and pulled out a brown blunt rolled in what appeared to be a Backwoods cigar. He said, "There you go" and held up the blunt. The garbage can was the only place he looked.

At some point while § 87(2)(b) and § 87(2)(b) were standing together, PO Sitzman said to § 87(2)(b) "You black nigger. We're gonna lock you up." At that time, § 87(2)(b) was elsewhere talking to an officer about getting a search warrant. § 87(2)(b) arrived and brought three officers into the house. PO Thomas tried to enter the house. § 87(2)(b) and § 87(2)(b) told him that he could not enter the house because three officers were already inside. PO Thomas said he had to go inside because his captain was inside. PO Thomas grabbed the door and put his foot inside the doorway, preventing the door from closing. He did not go inside the house, except for his foot. Lt. Abbassi came to him and said, "I'm good." PO Thomas stopped trying to enter.

After searching the house, officers handcuffed § 87(2)(b) § 87(2)(b) s description of the arrest was consistent with that provided by § 87(2)(b)

Victim: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was § 87(2)(b) old. She is a black female, 5'9" tall and 145 pounds. § 87(2)(b) She is § 87(2)(b) s girlfriend.*

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on July 30, 2013 (encl. 59-65). § 87(2)(b) was inside the kitchen of § 87(2)(b) She looked out the open window and saw officers trying to get inside the house, but the family would not allow them. An officer, identified by the investigation as Sgt. Hirsch said, "You monkey," repeatedly to § 87(2)(b) while beating his chest to imitate a monkey. § 87(2)(b) shouted at the officer, "No. You are not going to do that."

§ 87(2)(b) came in and said that the officers wanted everyone out of the house. § 87(2)(b) exited the house and went into the backyard. She was wearing a hairnet and had soap on her hands, so she went back inside to wash up in the bathroom. While she was in the second floor bathroom, there was a knock on the door. § 87(2)(b) said he was there with the police. She opened the door, wearing only a towel, and saw § 87(2)(b) and three or four officers. They did not say anything to her, and she closed the door.

Witness: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was § 87(2)(b) old. She is a black female, 4'6" tall and 78 pounds, with brown hair and brown eyes. She is § 87(2)(b) s daughter.*

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on July 26, 2013 (encl. 47-51). § 87(2)(b) exited § 87(2)(b) to find many officers in her backyard. About six officers were standing by the back door of § 87(2)(b) and § 87(2)(b) and § 87(2)(b) s friend were blocking them from entering. The officers pushed § 87(2)(b) s shoulders and said, "Let us go in," repeatedly. She said, "No, you're not coming in the house." Several officers continuously told § 87(2)(b) that they were going to come back, take the sound system, and "trash the place." After a few minutes, § 87(2)(b) arrived. Two officers went inside the house with § 87(2)(b)

An officer, identified by the investigation as Sgt. Hirsch, called § 87(2)(b) a "nigger," "gorilla," and "black monkey," while § 87(2)(b) was sitting 6-7 feet away. § 87(2)(b) was standing with § 87(2)(b) and four of his friends. § 87(2)(b) could not see Sgt. Hirsch because a bald heavy officer wearing a white shirt (identified by the investigation as PO Sitzman, though he was wearing a blue shirt) was standing between Sgt. Hirsch and § 87(2)(b) In response, an unidentified male told Sgt. Hirsch to calm down. § 87(2)(b) told Sgt. Hirsch, "You don't need to say this."

Witness: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was § 87(2)(b) old. He is a black male, 5'11" tall and 170 pounds, with black hair and brown eyes. § 87(2)(b) He is § 87(2)(b) s friend.*

CCRB Statement

§ 87(2)(b) was interviewed by the CCRB in his home, located at § 87(2)(b), on August 29, 2013 (encl. 76-80). His statement was consistent with his telephone statement to the CCRB on August 8, 2013 (encl. 75a). § 87(2)(b) never saw anyone smoking marijuana and never smelled marijuana. § 87(2)(b) and § 87(2)(b) stood in front of the door to prevent officers from entering.

An officer, identified by the investigation as Sgt. Hirsch, but described by § 87(2)(b) as wearing plainclothes, called § 87(2)(b) “nigger,” and “coon.” § 87(2)(b) told everyone to be quiet. § 87(2)(b) put his hand over § 87(2)(b)'s mouth so that he would not say anything to Sgt. Hirsch.

After officers had been in the backyard for 30-40 minutes, § 87(2)(b) let some of the officers into the house. After the officers searched the house, several officers arrested § 87(2)(b). § 87(2)(b)'s description of the arrest was consistent with that provided by § 87(2)(b).

Witness: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was § 87(2)(b) old. He is a black male, 5'8" tall and 160 pounds. He § 87(2)(b) is § 87(2)(b)'s friend.*

CCRB Statement

§ 87(2)(b) was interviewed on August 29, 2013 at § 87(2)(b) in Brooklyn (encl. 72-75). His statement was consistent with his telephone statement to the CCRB on August 9, 2013 (encl. 71a). § 87(2)(b) was standing at the grill when officers first entered the backyard. When officers tried to enter the house, § 87(2)(b) was one of the people who initially stood in front of the door and would not let them inside. After some of the § 87(2)(b) family told him that they would deal with the police, § 87(2)(b) returned to the grill. He did not see § 87(2)(b) or § 87(2)(b) being handcuffed. There was no marijuana at the party.

Witness: § 87(2)(b)

- § 87(2)(b) is a black male. He is § 87(2)(b)'s friend and § 87(2)(b)'s nephew.

Telephone Statement

§ 87(2)(b) provided a brief telephone statement to the CCRB on March 20, 2014 (encl. 80a). On July 4, 2013, § 87(2)(b) was at the barbeque in the backyard. He saw officers enter the backyard. He heard they were looking for someone who ran inside, but he did not see anyone run inside. § 87(2)(b) sat in a black chair throughout the time that officers were in the backyard. He heard and saw officers talking to § 87(2)(b) but could not hear most of the conversation. He did not hear officers say anything inappropriate while in the backyard.

Witness: § 87(2)(b)

- § 87(2)(b) is § 87(2)(b)'s friend and § 87(2)(b)'s wife.

Telephone Statement

§ 87(2)(b) provided a telephone statement on March 26, 2014 (encl. 80b). On July 4, 2013, § 87(2)(b) was in § 87(2)(b)'s backyard at a barbeque. Many officers ran into the backyard. They said they had seen someone smoking or drinking outside the backyard and then run inside. The officers wanted to get into the house. People in the backyard asked why. The officers said someone ran into the house. People in the yard said no one ran inside. Officers pushed § 87(2)(b) and his sister, § 87(2)(b) while trying to get into the house. The officers entered the house. They did not find who they were looking for. § 87(2)(b) did not

see the person who the officers were looking for. She did not believe anyone ran into the house.

She did not recall seeing officers looking around the backyard or looking opening containers. She did not recall hearing officers saying anything inappropriate to § 87(2)(b). She did not recall hearing any officers saying anything about a noise complaint. Although § 87(2)(b) was inside the backyard for the whole incident, she did not recall the details because it was a long time ago and there were many officers and civilians in the yard.

Witness: § 87(2)(b)

- § 87(2)(b) was a guest at § 87(2)(b)'s barbeque.

Telephone Statement

§ 87(2)(b) provided a telephone statement on June 2, 2014 (encl. 80c). On July 4, 2013, she and the other guests were sitting and eating when officers entered the backyard. The officers said they saw someone with marijuana run into the house. They tried to enter the house, but the female owner of the house, identified by the investigation as § 87(2)(b), tried to stop the officers from entering. She and § 87(2)(b) would not allow the officers to enter the house. They told her that someone ran into the house, but she insisted that no one went inside. Eventually, § 87(2)(b) allowed two or three of the officers into the house. While the officers were inside, a white male officer, identified by the investigation as Sgt. Hirsch, also tried to get inside. § 87(2)(b) told the officer that he could not enter. The officer pushed § 87(2)(b)'s chest or shoulder hard with one or two hands. The two or three officers exited the house and asked § 87(2)(b) for his identification. He said it was inside the house and that he would go in and get it. The officers handcuffed him. He asked, "Why are you guys arresting me? I let you in the house."

§ 87(2)(b) did not recall hearing any officer use profanity or offensive language towards anyone in the backyard. She did not remember seeing any officers looking inside of anything in the backyard, such as a garbage can. She did not hear any officer threaten to damage a sound system or trash the house.

§ 87(2)(b) recorded two videos of the incident on her cell phone and emailed the videos to the CCRB.

Attempts to Contact Civilians

§ 87(2)(b) stated that § 87(2)(b) and § 87(2)(b) were present for the incident. § 87(2)(b) was unable to provide contact information for these witnesses. Multiple attempts were made to contact each witness except for § 87(2)(b) who would only have witnessed the initial entry by the officers into the backyard before he went to get § 87(2)(b).

A 411 search found a phone number and address for § 87(2)(b). § 87(2)(b) was called on August 8, 2013. A woman answered and said that § 87(2)(b) was at work and would not come home that evening. On June 2, 2014, § 87(2)(b) was called. His grandmother answered and said that he did not live with her. She provided his address and the phone number of his other grandmother, with whom he lived. § 87(2)(b)'s other grandmother was called on June 2, 2014. A female answered and said that § 87(2)(b) was not home. She took a message for him to call the CCRB. A first please call letter was mailed to § 87(2)(b) on June 2, 2014. § 87(2)(b)'s other grandmother was called on June 5, 2014. A female answered and said that § 87(2)(b) was in the bathroom and would call back. She said that § 87(2)(b) had the CCRB phone number. § 87(2)(b) did not call back. A final please call letter was mailed to § 87(2)(b) on June 9, 2014. § 87(2)(b) was called on June 10 and June 16, 2014. Each time, a female answered and took a message for

§ 87(2)(b) to call the CCRB. § 87(2)(b) did not contact the CCRB. Letters sent to him were not returned to the CCRB by the United States Postal Service.

A first please call letter was mailed § 87(2)(b) at the address listed in his arrest report on March 20, 2014. Lexis Nexis results yielded a different address for § 87(2)(b) as well as an email address and phone number. A first please call letter was emailed and mailed to § 87(2)(b) s Lexis Nexis address on March 21, 2014. Both letters were returned to the CCRB by the United States Postal Service. The first letter was returned as “no such number.” The second letter was returned as “attempted - not known – unable to forward.” § 87(2)(b) was called on March 21, March 26, March 31, April 2, and April 7, 2014. Each time, § 87(2)(b) did not answer, and voicemail messages were left asking him to call the CCRB.

A Lexis Nexis search found a phone number and address for § 87(2)(b). On March 27, 2014, a first please call letter was mailed to § 87(2)(b). § 87(2)(b) was called on March 27, March 31, and April 2, 2014. Each time, § 87(2)(b) did not answer, and messages were left asking him to call the CCRB. § 87(2)(b) was called on April 7, 2014. A recording stated that the number was not accepting incoming calls. No message could be left. A final please call letter was mailed to § 87(2)(b) on April 2, 2014. Both letters were returned by the United States Postal Service. The first letter was returned as “insufficient address – unable to forward.” The final letter was returned as “attempted – not known – unable to forward.”

A Lexis Nexis search found an address, but no phone number, for § 87(2)(b). On March 27, 2014, a first please call letter was mailed to § 87(2)(b). A final please call letter was mailed to § 87(2)(b) on April 2, 2014. The second letter was returned by the United States Postal Service as “attempted – not known – unable to forward.” A note on the envelope said, “vacant.”

A Lexis Nexis search for § 87(2)(b) yielded no results. Lexis Nexis listed dozens of people named § 87(2)(b) and § 87(2)(b) who resided in Brooklyn.

NYPD Statements:

Subject Officer: PO ROSS GARNER

- *At the time of the incident, PO Garner was § 87(2)(b) old. He is a white male, 6’1” tall and 200 pounds, with brown hair and brown eyes.*
- *PO Garner worked from 2:00 p.m. to 10:35 p.m., assigned to Conditions and Street Narcotics Enforcement Unit with Sgt. Hirsch, PO Treuman, and PO Sitzman. They were in uniform and assigned to an unmarked gold rented Hyundai sedan.*

Memo Book

PO Garner’s memo book entries state that at 6:30 p.m., he observed a male rolling a marijuana cigar on the sidewalk at the rear of § 87(2)(b). When PO Garner attempted to go inside to chase the perpetrator who fled inside the yard, he was blocked by two males who made physical contact with him and stated, “You’re not coming in here.” At 7:00 p.m., he arrested § 87(2)(b) DOB § 87(2)(b), and § 87(2)(b) DOB § 87(2)(b). At 7:10 p.m., he arrived at the 81st Precinct stationhouse (encl. 81-82).

Complaint Report and Arrest Reports for § 87(2)(b) and § 87(2)(b)

In the narrative of Complaint Report number § 87(2)(b) and the arrest reports for § 87(2)(b) and § 87(2)(b) PO Garner wrote that while he was attempting to effect a lawful arrest, § 87(2)(b) and § 87(2)(b) “§ 87(2)(a) 160.50” In the arrest report for § 87(2)(b) PO Garner added, “§ 87(2)(a) 160.50”

§ 87(2)(a) 160.50 .” § 87(2)(b) was arrested for
§ 87(2)(a) 160.50
§ 87(2)(b) was arrested for § 87(2)(a) 160.50
(encl.129-139).

Complaint Report for Unapprehended Male

PO Garner prepared Complaint Report number § 87(2)(b) for a black male, § 87(2)(b) years old, 6 feet tall, and 180 pounds, with brown eyes and black hair. He was wanted for criminal possession of marijuana in the fourth and fifth degrees at the northeast corner of § 87(2)(b) and § 87(2)(b) in Brooklyn on July 4, 2013 at 6:30 p.m. In the narrative, PO Garner wrote that the male was observed with marijuana in public view on a public sidewalk. When officers approached him, the male threw the marijuana into a garbage pail and fled inside of § 87(2)(b) (encl. 160e-160g).

CCRB Statement

PO Ross Garner was interviewed at the CCRB on September 25, 2013 (encl. 83-86). On July 4, 2013, at 6:30 p.m., PO Garner was driving down § 87(2)(b) in Brooklyn. He saw a black male in his twenties wearing a tank top alone on the sidewalk, holding a thin, three-inch-long, brown cigar which PO Garner believed contained marijuana. He was holding each end with two finger-tips. He was not rolling it (PO Garner later said he was rolling it). PO Garner did not see or smell marijuana, but he knew the cigar contained marijuana because, in his experience, this type of cigar is often used to roll marijuana. PO Garner did not see any substances on his person. The wrapping paper was the only thing that led PO Garner to believe that the male possessed marijuana.

PO Garner alerted his partners, stopped the police vehicle, and got out. When PO Garner was three feet away, the male saw him and began to walk away. PO Garner said, “Come here. Police.” The male continued walking and entered an open gate in a tall fence, to the backyard of § 87(2)(b). PO Garner followed the male into the gate. Sgt. Hirsch, PO Sitzman, PO Treuman, and possibly PO Thomas, entered behind him. There was a barbecue in the backyard, with a large group of people.

PO Garner saw the male open a garbage can in a line of garbage cans against the gate, on the right side of the entrance. The male put the cigar into the garbage can, closed the lid, and walked towards the house. (PO Garner later found out that an officer removed the cigar from the garbage can and vouchered it.) PO Garner walked five feet into the backyard, towards the house, when he was stopped by § 87(2)(b) and § 87(2)(b). He was about twenty feet from the backdoor of the house. § 87(2)(b) and § 87(2)(b) extended one or two of their hands and pushed PO Garner’s chest. The push was hard, but he did not stumble backwards. They said, “You’re not coming in here.”

PO Garner said, “Get out of my way. I need to talk to that kid right over there,” and he pointed at the male, who was walking towards the backdoor. The male walked into the house, through the backdoor, which was open. § 87(2)(b) and several other people backed up towards the backdoor, blocking PO Garner from entering with their arms crossed. § 87(2)(b) said, “You’re not coming in here.”

PO Garner wanted to enter the house to arrest the male for criminal possession of marijuana. There was no other reason that PO Garner wanted to enter the house. PO Garner did not suspect the male of any criminal activity other than possessing the marijuana cigar. He did not observe the male do anything else for which he could have been arrested. He did not suspect that there was any other criminal activity inside the house.

PO Garner did not know what his partners were doing while he focused on apprehending

the male. He knew that one of the officers called for back-up, because more officers arrived within one minute. PO Garner told Lt. Passolo about the male with marijuana entering the house. § 87(2)(b) arrived and approached PO Garner. PO Garner told § 87(2)(b) that he saw a black male in a tank top roll marijuana and then run inside the house. The group who was guarding the door moved out of the way, and § 87(2)(b) went inside the house. He came back out and told PO Garner that there was no one inside who fits the description. § 87(2)(b) said, "If you want to come in here and look, you're more than welcome." PO Garner did not know if any other officers spoke with § 87(2)(b). PO Garner and § 87(2)(b) went inside the house together. He was not aware of any other officers entering the house. PO Garner and § 87(2)(b) looked inside every room of the house. On the second floor, he knocked on a bathroom door and a female said that she was in the bathroom. He did not see anyone inside the house. After searching about five minutes, he and § 87(2)(b) went back to the backyard.

PO Garner pointed out § 87(2)(b) and § 87(2)(b) to other officers as the two people who pushed him. Several officers escorted § 87(2)(b) outside and arrested him. PO Garner and several other officers, including Lt. Passolo, approached § 87(2)(b) who was sitting alone in a chair in the backyard. PO Garner told § 87(2)(b) to stand up. § 87(2)(b) stood up. PO Garner told him to put his hands behind his back. § 87(2)(b) held one of his wrists in his other hand on his stomach, refusing to put them behind his back. PO Garner tried to pull one of § 87(2)(b)'s arms behind his back. Another officer may have been pulling the other arm. They were unable to unlock his arms, so PO Garner reached down and grabbed § 87(2)(b)'s feet while other officers held § 87(2)(b)'s body. The officers lifted § 87(2)(b) into the air and then placed him on the ground, face down. Once on the ground, the officers were able to pull § 87(2)(b)'s arms behind his back and place them in handcuffs. The officers lifted § 87(2)(b) up and took him out of the backyard.

PO Garner did not hear PO Treuman say, "It's a fucking noise complaint," or use any profanity. PO Garner did not hear an officer threaten to destroy the sound system or destroy the house if they had to come back. PO Garner never saw Sgt. Hirsch speak with § 87(2)(b). PO Garner never heard any officer call § 87(2)(b) "nigger," "coon," or "monkey." Until the moment § 87(2)(b) was arrested, PO Garner never told anyone that they could be arrested for any reason. PO Garner did not hear any officer tell anyone that they could be arrested for any reason.

Subject Officer: PO MALERIE TREUMAN

- *At the time of the incident, PO Treuman was § 87(2)(b) old. She is a white female, 5'5" tall and 125 pounds, with brown hair and brown eyes.*
- *PO Treuman worked from 2:00 p.m. to 10:35 p.m., assigned to Firework Auto with PO Sitzman, PO Garner, and Sgt. Hirsch. She was in uniform and assigned to an unmarked gold Hyundai.*

Memo Book

PO Treuman wrote the following memo book entries: at 6:30 p.m., PO Treuman observed a male with marijuana in his hand at the corner of § 87(2)(b) and § 87(2)(b). When officers approached him, the male went inside the rear of § 87(2)(b) fleeing officers, and threw marijuana into a garbage pail. Two black males pushed and blocked PO Garner from entering. At 7:00 p.m., PO Garner arrested a perpetrator for § 87(2)(a) 160.50 § 87(2)(b) (encl. 88-90).

Property Clerk Invoice

PO Treuman prepared Property Clerk Invoice number § 87(2)(b) as arrest evidence on

July 4, 2013 (encl. 160c-160d). She vouchered marijuana, which was packaged in a cigar wrapper. The field test was positive. PO Sitzman found the marijuana. The owner was unknown. Sgt. Hirsch approved the invoice.

CCRB Statement

PO Malerie Treuman was interviewed at the CCRB on October 3, 2013 (encl. 92-94). Near § 87(2)(b) in Brooklyn, PO Treuman and some of the officers observed a male on the sidewalk, rolling a brown cigar which, in her experience, usually contains marijuana. The male appeared to be pinching and rolling the ends with his fingers. She did not see the marijuana inside the cigar.

PO Garner exited the van, followed by the rest of the team. As PO Garner approached the male, PO Garner said, "Stop. Police." The male ran into an open gate leading to the backyard of § 87(2)(b). PO Garner and the team followed the male to the gate, where PO Garner was stopped by § 87(2)(b) and § 87(2)(b). They stood inside the backyard at the gate and blocked PO Garner, who was still on the sidewalk, from entering the backyard. § 87(2)(b) and § 87(2)(b) extended their arms in front of them. PO Treuman, who was standing behind PO Garner, did not see whether they made physical contact with PO Garner. The male ran towards the backdoor of the house. PO Garner said something to § 87(2)(b) and § 87(2)(b) and they stepped aside. PO Garner entered the backyard, followed by PO Treuma, PO Sitzman, and Sgt. Hirsch.

Besides the fact that they saw the male flee into the backyard, there was no other reason the officers entered the backyard. PO Treuman did "crowd control," because a number of people gathered around the officers, yelling that the officers needed a search warrant and that they had to get out of the backyard. PO Treuman told the crowd to stay back. § 87(2)(b) approached the officers and screamed profanity at them. She told the officers to "get the fuck out." PO Treuman told § 87(2)(b) to "stay back and let us do our job." PO Treuman did not use any profanity towards § 87(2)(b). She did not mention a noise complaint, but she did tell people several times to turn down the music. She did not know if she used any profanity at this point. PO Treuman did not say, "Cut the fucking music," or "It's a fucking noise complaint."

Lt. Passolo arrived and spoke with § 87(2)(b). PO Treuman could not hear their conversation. Lt. Passolo, PO Garner, and § 87(2)(b) entered § 87(2)(b). At this point, officers had been inside the backyard for at least five minutes. Someone tried to close the back door. PO Thomas told that person that the door had to stay open. PO Thomas held the door open with his hands. PO Treuman could not see his feet. He did not say, "Back the fuck up," or use any profanity.

PO Treuman did not hear Sgt. Hirsch talking to any civilians. She did not hear Sgt. Hirsch call § 87(2)(b) "fucking nigger," "coon," "gorilla," or "monkey."

PO Treuman went outside to the street. Lt. Passolo escorted § 87(2)(b) out of the backyard and instructed PO Treuman to arrest him. PO Treuman handcuffed § 87(2)(b) and placed him in a police vehicle.

Subject Officer: PO WILLIAM SITZMAN

- *At the time of the incident, PO Sitzman was § 87(2)(b) old. He is a white male, 5'8" tall and 250 pounds, with no hair and blue eyes.*
- *PO Sitzman worked from 2:00 p.m. to 10:35 p.m., assigned to Street Narcotics Enforcement Unit with PO Treuman, PO Garner, and Sgt. Hirsch. They were in an unmarked gold Hyundai and were in uniform.*

Memo Book

PO Sitzman wrote the following memo book entries: at 6:30 p.m., a black male was observed with a marijuana cigar in public. The male dropped the cigar into a garbage can and ran into a house when the arresting officer approached him. A black male blocked the arresting officer, stating that the officers needed a warrant and “get out of here.” At 7:00 p.m., two people were arrested. A large crowd formed at the back of § 87(2)(b). An impact van transported the two prisoners to the stationhouse. A marijuana cigar was recovered from the garbage can where the defendant dropped it. A UF61 was prepared for criminal possession of marijuana. The cigar was vouchered (encl. 95-96).

CCRB Statement

PO William Sitzman was interviewed at the CCRB on October 3, 2013 (encl. 97-99). He returned to the CCRB for a follow-up interview on April 1, 2014 (encl. 99a-b). PO Sitzman and his partners observed a male with a brown marijuana cigar on the sidewalk on § 87(2)(b) in Brooklyn. PO Sitzman could tell immediately that the cigar contained marijuana, because the brown cigar wrapper is often used to roll marijuana. He did not see or smell any marijuana. PO Garner stopped the vehicle and all the officers exited. They walked through a gate and into the backyard of § 87(2)(b). Through the gate, PO Sitzman observed the male place the marijuana cigar in a garbage can and walk towards the back door of the house. PO Garner, PO Sitzman, PO Treuman, and Sgt. Hirsch walked through the gate and entered the backyard. The only reason the officers entered the backyard was to pursue the male with the marijuana. PO Sitzman reached into the garbage can and removed the marijuana cigar, which he placed in his pocket.

PO Sitzman did not recall looking for contraband any place besides the garbage can, where he found the marijuana cigarette. He did not see the unapprehended male drop anything in any place besides the garbage can. He remembered seeing food containers on tables at the barbeque but did not recall looking inside any containers or opening them. He did not remember putting his hand inside any food containers. He did not recall opening a grill. He did not recall seeing any other officer opening, looking inside, or putting their hands inside food containers or a grill. After finding the alleged marijuana, PO Sitzman did not recall whether he suspected that the male had dropped other contraband.

People in the backyard, including § 87(2)(b), shouted profanity at the officers and told them to get out. PO Sitzman told everyone to “get back.” PO Sitzman did not hear PO Treuman say, “It’s a fucking noise complaint,” or “Cut the fucking music.” He did not hear PO Treuman use any profanity. PO Sitzman did not use any profanity.

PO Sitzman never heard any officer threaten to arrest anyone if they did not allow the officers to enter the house. PO Sitzman did not see PO Thomas try to enter the house or interact with § 87(2)(b).

PO Sitzman did not hear Sgt. Hirsch call § 87(2)(b) or anyone a “fucking nigger,” “coon,” “gorilla,” or “monkey.” He did hear Sgt. Hirsch make any racial remarks. He did not hear any officer threaten to destroy the sound system or the house if they had to return.

PO Sitzman saw officers attempting to arrest § 87(2)(b). PO Sitzman tried to pull § 87(2)(b)’s arm behind his back. § 87(2)(b) pulled his arm away. PO Sitzman and several officers picked up § 87(2)(b) and placed him on the ground, where they handcuffed him.

PO Sitzman prepared a complaint report for the unidentified male who had marijuana in public view. Someone tested the cigar and confirmed that it contained marijuana. Someone vouchered the marijuana.

Subject Officer: SGT FORREST HIRSCH

- *At the time of the incident, Sgt. Hirsch was § 87(2)(b) old. He is a white male, 5'9" tall and 190 pounds, with brown hair and brown eyes.*
- *Sgt. Hirsch worked from 2:00 p.m. to 10:57 p.m., assigned to Street Narcotics Enforcement Unit. He was partnered with PO Garner, PO Sitzman, and PO Treuman. They were in uniform and assigned to an unmarked police vehicle.*

Memo Book

Sgt. Hirsch wrote the following memo book entries regarding the incident: At 6:30 p.m., he observed a black male with a marijuana cigar in his hand at the corner of § 87(2)(b) and § 87(2)(b). When officers approached him, the male fled into the rear of § 87(2)(b). He threw the blunt into a garbage can at the location (the blunt was recovered by PO Sitzman). Then two black males at the location pushed and fought with PO Garner to aid in the defendant's escape. At 7:00 p.m., two people were arrested (encl. 100-101).

CCRB Statement

Sgt. Forrest Hirsch was interviewed at the CCRB on October 17, 2013 (encl. 102-105). PO Garner saw a black male on the sidewalk of § 87(2)(b) in Brooklyn, holding a marijuana cigar. He alerted his partners. Sgt. Hirsch saw the male holding a brown, six-inch long hand-rolled cigar up to his mouth with one hand and a lighter in the other. He knew the cigar contained marijuana because of the packaging and because it was rolled. He did not see or smell marijuana.

PO Garner stopped the vehicle and exited. The other officers followed. Sgt. Hirsch did not provide instructions to any of the officers or to the black male. Sgt. Hirsch did not recall whether PO Garner issued any commands to the black male. As soon as he saw PO Garner, the male ran through a gate in a fence and entered the backyard of § 87(2)(b). PO Garner followed him through the gate, followed by Sgt. Hirsch and then the rest of the team.

Sgt. Hirsch did not issue any instructions to the officers before chasing the male. They all knew that the protocol was to follow the suspect into the backyard. There was no reason Sgt. Hirsch wanted to enter the backyard aside from apprehending the black male. Sgt. Hirsch did not suspect the male of anything besides criminal possession of marijuana.

Sgt. Hirsch called for back-up because there were fifty people in the backyard, some of whom were drinking alcohol and yelling profanity at the officers. He looked up and saw PO Garner run towards the house. When PO Garner was six feet from the backdoor, § 87(2)(b) and § 87(2)(b) pushed PO Garner in his chest twice, blocking him from entering the house. PO Garner stumbled backwards. There were several other black males blocking the door, telling PO Garner, "You can't fucking come in here. This is private property."

The officers needed to go inside the house because they did not know if the black male lived in the house, if he was armed, if he was wanted on warrant, or if there were people inside the house who he might be holding hostage. Because it was July 4, there was a "high probability of shots fired." Sgt. Hirsch did not observe anything about the male that made him suspect the male could be armed, be wanted on warrant, or be likely to create a hostage situation, besides the fact that the male had marijuana and ran away from officers for something that was "summonsable" and it was July 4. There was nothing else suspicious about the male. There was no reason officers wanted to enter the house besides to apprehend the male.

Sgt. Hirsch never heard PO Treuman say, "It's a fucking noise complaint," or "Cut the fucking music."

Sgt. Hirsch told § 87(2)(b) that officers observed a male committing a crime on the street and fleeing into the backyard. Their conversation lasted less than 30 seconds, after which § 87(2)(b) walked to the other side of the yard, screaming profanity. Sgt. Hirsch never had another conversation with § 87(2)(b). He did not call § 87(2)(b) a "nigger," "coon,"

or “monkey.” He did not use offensive language and did not hear any other officer speak offensively to § 87(2)(b).

Back-up and § 87(2)(b) arrived. Sgt. Hirsch and Lt. Passolo told § 87(2)(b) about the male with marijuana. § 87(2)(b) continued to talk to Lt. Passolo and Lt. Abbasi, but Sgt. Hirsch did not hear the conversation.

Approximately 15 minutes after Sgt. Hirsch first entered the backyard, Lt. Passolo, Lt. Abbasi, PO Garner and § 87(2)(b) entered § 87(2)(b). The only reason officers did not enter the house until this point was because people were obstructing the officers from entering the house and the crowd was large and hostile. If they had not been stopped, Sgt. Hirsch and PO Garner would have entered the house. Sgt. Hirsch was not waiting to get permission from the owner of the house. He knew that the officers had the right to enter the house to arrest the male who fled into the house.

While the officers were inside, some people tried to close the backdoor. Sgt. Hirsch placed his foot inside the doorway to keep the door from closing. A female said, “You can’t come in here.” Sgt. Hirsch explained to them that he was not going inside and that the door had to be open for the safety of the officers inside. Sgt. Hirsch did not say, “Back the fuck up,” or use any profanity. He did not put his hands on anyone. Sgt. Hirsch did not recall PO Thomas being at the door with him at that point. Sgt. Hirsch did not hear PO Thomas say, “Back the fuck up.”

Subject Officer: PO JONATHAN THOMAS

- *At the time of the incident, PO Thomas was § 87(2)(b) old. He is a black male, 5’8” tall and 155 pounds, with black hair and brown eyes.*
- *PO Thomas worked from 2:00 p.m. to 10:35 p.m., assigned to Street Narcotics Enforcement Unit with PO Conrad Narcisse. He was in uniform and assigned to marked police vehicle number 4382.*

Memo Book

PO Thomas wrote the following memo book entries: At 6:20 p.m., he responded to a request for additional units by the SNEU sergeant at § 87(2)(b) and § 87(2)(b). At 7:00 p.m., two people were arrested by PO Garner (encl. 106-109).

CCRB Statement

PO Jonathan Thomas was interviewed at the CCRB on October 22, 2013 (encl. 110-112). PO Thomas responded to a request for additional units in the backyard of § 87(2)(b) in Brooklyn. He did not hear PO Treuman say, “It’s a fucking noise complaint,” or use profanity.

Lt. Abbasi, Lt. Passolo, and PO Garner entered the house with § 87(2)(b). PO Thomas stood outside the door. Several people tried to close the door. PO Thomas stopped the door by placing his foot between the door and the door frame because he wanted the door to remain open for the safety of the officers inside. He said that the door could not be closed. § 87(2)(b) stood close to PO Thomas and told him not to go inside. PO Thomas put his hand out and might have made physical contact with § 87(2)(b)’s chest. PO Thomas explained that he was not going inside the house, but that the door could not be closed. PO Thomas did not use any profanity. He did not tell § 87(2)(b) or anyone to “get the fuck back.” He never pushed § 87(2)(b). The audio file was played for PO Thomas. At 21 minutes and 35 seconds, he recognized his own voice later saying that the door had to stay open for the safety of the officers inside the house.

PO Thomas did not hear Sgt. Hirsch or any officer call § 87(2)(b) a “nigger,” “coon,” or “monkey.” PO Thomas never heard an officer tell § 87(2)(b) that if the officers had to come back, her house or sound system would be destroyed or confiscated.

Subject Officer: CPT ISA ABBASSI

- *At the time of the incident, Cpt. Abbassi was a Lieutenant. He has since been promoted to Captain. He will be referred to in this report as Lt. Abbassi. Lt. Abbassi was § 87(2)(b) old at the time of the incident. He is a white male, 6'3" tall and 245 pounds, with brown hair and hazel eyes.*
- *Lt. Abbassi worked from 2:45 p.m. to 11:30 p.m., assigned as Platoon Commander. He was in uniform and assigned to marked police vehicle number 5659. Lt. Abbassi started his tour with PO Konki as his operator, but at the time of the incident, PO Konki was reassigned to another position, and Lt. Abbassi was working alone.*

Memo Book

Lt. Abbassi wrote the following memo book entries regarding the incident. At 6:35 p.m., he responded to a request for additional units. The SNEU sergeant stated that PO Garner pursued one black male for criminal possession of marijuana into the backyard of § 87(2)(b) where several black males and females physically obstructed and pushed PO Garner, causing the perpetrator to flee into the location. At 7:00 p.m., PO Garner arrested two people for § 87(2)(a) 160.50. At 7:30 p.m., Lt. Abbassi performed administrative duties relating to the arrests (encl. 113-116).

CCRB Statement

Lt. Abbassi was interviewed at the CCRB on November 6, 2013 (encl. 117-120). Lt. Abbassi responded to a call for additional units at § 87(2)(b). He arrived alone. Sgt. Hirsch explained to him that the SNEU team observed a black male smoking a lit marijuana cigarette on the sidewalk, and then fleeing into the backyard. Sgt. Hirsch said that two people pushed PO Garner as he pursued the male into the yard, and the male ran into the house. Sgt. Hirsch reported that the male may have been armed and may have possessed additional drugs. Based on Sgt. Hirsch's concern and Lt. Abbassi's knowledge that there tend to be "a high volume of shots fired" on July 4 and that there was a housing development across the street in which there were shots fired in the past, Lt. Abbassi determined that the officers needed to go inside the house to arrest the male for criminal possession of marijuana and anything else they found on him. (Lt. Abbassi was not aware of any shots fired in the vicinity on July 4, 2013.) Anyone who obstructed the officers from entering the house was guilty of obstructing governmental administration.

Lt. Abbassi entered the backyard, where people were shouting at the officers to get out. Lt. Abbassi did not hear PO Treuman say, "Cut the fucking music," or "It's a noise fucking noise complaint," or use any profanity.

Lt. Abbassi spoke with § 87(2)(b). She gave Lt. Abbassi her driver's license. He requested a check of her license number to verify that she resided at that address. Lt. Abbassi tried to explain to § 87(2)(b) why the officers needed to apprehend the male, but § 87(2)(b) kept on running over to the people by the door, shouting "Don't let them in my house."

Lt. Abbassi tried to explain to § 87(2)(b) that Sgt. Hirsch had conveyed to him that the male with marijuana may have been armed, was probably intoxicated, could be destroying evidence, and could be hurting himself or anyone inside the home. He felt this was a legitimate concern because "people who smoke marijuana often have more drugs on them." Lt. Abbassi explained to § 87(2)(b) that the officers had to enter the house in hot pursuit. Lt. Abbassi tried to convince § 87(2)(b) that she should not ruin her 4th of July party by "inciting" people in the backyard to obstruct the officers from entering the house. Lt. Abbassi told her that they and she would be arrested if they continued to obstruct the officers from entering the house.

Lt. Passolo arrived. He and Lt. Abbassi decided try to gain cooperation in allowing officers into the house, rather than push their way through the crowd to the house and arresting anyone in their way. Lt. Abbassi was not asking the § 87(2)(b)s for consent for the officers to enter the house, because the officers already had the right to enter. He was only asking for § 87(2)(b) and the other people at the door to clear the way so that the officers could enter more easily.

Lt. Passolo and Lt. Abbassi tried to reason with § 87(2)(b) § 87(2)(b) approached them. Lt. Passolo and Lt. Abbassi said to him, “We are going to make entry and we are going to arrest anybody that obstructs us,” including § 87(2)(b) Lt. Abbassi said that he pleaded with § 87(2)(b) “not to have these people, and yourself, obstruct us from getting in there and cause you to be arrested.” By “getting in there,” Lt. Abbassi explained that he meant getting into the house. When asked if he told § 87(2)(b) that she might be arrested if officers were not allowed into the house, Lt. Abbassi replied, “Absolutely.”

§ 87(2)(b) had the group of people move away from the doorway. Lt. Passolo, Lt. Abbassi, and PO Garner entered the house with § 87(2)(b) It was necessary for PO Garner to enter the house because he would be able to identify the male with the marijuana. Lt. Abbassi and § 87(2)(b) searched the first floor, while Lt. Passolo and PO Garner searched other floors. Lt. Abbassi saw that the front door of the house was hidden by plywood. § 87(2)(b) turned the knob and opened the door, without having to unlock it. Lt. Abbassi determined that the male had exited the house through this door.

PO Thomas remained outside the backdoor in case the officers inside the house had a problem. While Lt. Abbassi was inside the house, he saw two males push PO Thomas. PO Thomas said, “Back up.” He did not say, “Get the fuck back,” or use any profanity.

After a few minutes, the officers and § 87(2)(b) exited the house.

Lt. Abbassi saw Sgt. Hirsch speaking with people in the backyard, but he never heard Sgt. Hirsch call § 87(2)(b) a “nigger,” “coon,” “monkey,” or “gorilla.”

Lt. Passolo and Lt. Abbassi determined that, rather than arresting § 87(2)(b) and approximately nine other people who obstructed officers from entering the house and, therefore, committed obstruction of governmental administration, they would have PO Garner identify the two individuals whose actions were “most egregious” and who actually put their hands on PO Garner. PO Garner pointed out § 87(2)(b) and § 87(2)(b)

Lt. Abbassi never heard any officer tell § 87(2)(b) that if the officers had to come back, they would destroy her property or confiscate her sound system. Lt. Abbassi never made these threats.

The recording was played for Lt. Abbassi. At 4 minutes and 55 seconds, Lt. Abbassi identified his own voice as saying, “Ma’am this is your home, correct... The young man that ran into your house, that you're trying to protect, needs to come out here. He's gonna get a ticket and he's gonna go on his way. Otherwise, you're going to be arrested for obstructing us for going after him. Your husband is. And so is he.” Lt. Abbassi recalled having that conversation. Lt. Abbassi reiterated that, during this conversation, he told § 87(2)(b) that she and the other people who were preventing the officers from entering the house would be arrested if they did not allow the officers to enter. At 9 minutes and 40 seconds, Lt. Abbassi identified his own voice as saying to § 87(2)(b) and § 87(2)(b) “He had a white tank top on,” and telling them that § 87(2)(b) will be arrested if she does not allow the officers to enter the house.

A marijuana cigarette was recovered at the scene. Lt. Abbassi did not recall whether he ever saw the marijuana cigarette.

Subject Officer: LT THOMAS PASSOLO

- *At the time of the incident, Lt. Passolo was § 87(2)(b) old. He is a white male, 5'7" tall, with a*

shaved head and brown eyes.

- *Lt. Passolo worked from 10:40 a.m. to 7:25 p.m., assigned as Special Operations Lieutenant for Anti-Crime with PO Mohammed Rios. He was in plainclothes and assigned to unmarked black Chevy Impala number 9988.*

Memo Book

Lt. Passolo did not prepare any memo book entries regarding this incident. At 12:00 p.m., he resumed patrol at the 81st Precinct with PO Rios and RMP number 9988. At 5:50 p.m., he stopped and arrested a male on Halsey Avenue and Ralph Avenue. At 7:25 p.m., his tour ended (encl. 121-122).

CCRB Statement

Lt. Passolo was interviewed at the CCRB on November 13, 2013 (encl. 123-125). Lt. Passolo and PO Rios, responded to a call for additional units at § 87(2)(b). PO Rios parked and remained inside the police vehicle. He went inside the backyard, where civilians, including § 87(2)(b) were yelling that the officers should “get the fuck out.” § 87(2)(b) was also telling the seven people who were standing at the back door not to allow officers to enter the house. Officers told them to get out of the way, but they did not move.

Lt. Passolo did not hear PO Treuman say, “It’s a fucking noise complaint,” or, “Cut the fucking music,” or use any profanity. Lt. Passolo did not hear Sgt. Hirsch call § 87(2)(b) a “nigger,” “coon,” “monkey,” or “gorilla.” He did not hear Sgt. Hirsch use any offensive language towards § 87(2)(b). Lt. Passolo did not use any offensive language towards § 87(2)(b).

Lt. Passolo was briefed by PO Garner, Sgt. Hirsch, and Lt. Abbassi, separately. Each officer reported that PO Garner had observed a black male smoking a marijuana cigarette on § 87(2)(b). When PO Garner pursued him, the male dropped the marijuana on the street and ran into the backyard. PO Garner followed the male into the backyard. The male fled into the house. PO Garner went to follow him into the house, but § 87(2)(b) and § 87(2)(b) pushed and blocked him.

Lt. Abbassi showed Lt. Passolo the marijuana cigarette that had been recovered. It was wrapped in brown paper. Though he could not see or smell marijuana, he believed that it contained marijuana because in his experience, such brown rolled cigarettes often contain marijuana.

The officers needed to enter the house to arrest the male for criminal possession of marijuana and for tampering with evidence by throwing the marijuana cigarette on the ground, which is a felony. The officers were also concerned that the male may have been armed or destroying any other drugs that he may have possessed. There was nothing that PO Garner or Sgt. Hirsch told Lt. Passolo about the male that indicated that he may have been armed or had more drugs, except for the fact that he fled from officers and that he was seen with a marijuana cigarette.

The officers were going to enter the house with or without cooperation, but Lt. Passolo and Lt. Abbassi decided that, although they could arrest § 87(2)(b) and all the people who were blocking the officers from entering the house, they would instead attempt to reason with § 87(2)(b). If § 87(2)(b) persuaded the people blocking the door to move, officers would search the house and arrest the male with the marijuana. They would then arrest § 87(2)(b) and § 87(2)(b) for pushing PO Garner and blocking him from entering the house.

Lt. Abbassi and Lt. Passolo explained to § 87(2)(b) that anyone who prevented them from entering the house, including § 87(2)(b) would be arrested for obstructing

governmental administration. Lt. Passolo probably did not convey this information to § 87(2)(b). § 87(2)(b) persuaded the people blocking the door to step aside. The officers and § 87(2)(b) entered the house and looked inside rooms on every floor, starting with the basement. At one point, Lt. Passolo heard arguing near the backdoor of the house. He went to the backdoor and found that Lt. Abbassi had already resolved the issue. Lt. Passolo did not hear any officer use profanity. He did not observe any officer push anyone.

Lt. Passolo searched for several minutes, and then the officers exited the house. He did not hear any officer tell § 87(2)(b) that her sound system or property would be confiscated or destroyed if officers had to return to the residence.

Other Evidence

Photographs

Images from Google Maps Street View taken in June, 2011, depict the fence surrounding the backyard of § 87(2)(b) (encl. 23-26). The front of the buildings is on § 87(2)(b) but the backyard and fencing are on § 87(2)(b) as the buildings are on the corner. Given that adjacent doorways are shorter than the fence, it can be estimated that the fence is at least six feet tall. White paneling inside the fence obscures the view inside the backyard from the street. Barbed wire lines portions of the top of the fence. A door in the fence is approximately six feet tall.

Video 1

On June 3, 2014, § 87(2)(b) provided two videos which she recorded on her cell phone on July 4, 2013 (encl. 80d). The first video begins with § 87(2)(b) standing with Lt. Thomas Passolo on his left and with PO Garner and PO William Sitzman on his right. A male is in front of him and § 87(2)(b) is behind that male. § 87(2)(b) turns to Lt. Passolo and shouts, "I said I was gonna get you my ID." Then § 87(2)(b)'s head goes down out of view, as the officers and civilians bend down towards him.

Video 2

The second video begins with PO Garner, PO Treuman, and PO Sitzman in the backyard, beside the gate to the backyard. They are surrounded by at least five males, § 87(2)(b) and several children. In the first 40 seconds of the video, PO Sitzman periodically tilts his head down towards the open garbage can beside him. At 00:00:40, PO Sitzman reaches into the garbage can and removes something. The officers and § 87(2)(b) are arguing about something inaudible.

At 00:01:11, people shout, "Nobody's inside," and § 87(2)(b) yells, "No, no, no," as officers walk towards the back door of the house, led by Sgt. Forrest Hirsch. § 87(2)(b) positions herself in front of Sgt. Hirsch and yells at him that he cannot go into the house. Sgt. Hirsch follows her as she backs up to the door of the house. § 87(2)(b) and § 87(2)(b) stand with their backs to the door of the house, shouting at Sgt. Hirsch, PO Treuman, and PO Garner, who are standing around them at the door. § 87(2)(b) and § 87(2)(b) are standing beside them. Sgt. Hirsch is speaking to § 87(2)(b) and § 87(2)(b) in particular, while the other officers are speaking with other people.

At 00:01:43, Sgt. Hirsch says something inaudible to § 87(2)(b) and § 87(2)(b). At this time, § 87(2)(b) is standing to § 87(2)(b)'s left, in front of Sgt. Hirsch. § 87(2)(b) has just walked away from beside § 87(2)(b) is next to § 87(2)(b) but has his back turned to Sgt. Hirsch. § 87(2)(b) is behind § 87(2)(b) § 87(2)(b)

§ 87(2)(b) is next to an open window, and there appears to be someone wearing a white T-shirt inside the window. PO Treuman is behind Sgt. Hirsch. PO Garner and PO Sitzman are standing behind PO Treuman. No other officers or civilians are within earshot of Sgt. Hirsch, especially as others are shouting. § 87(2)(b) shouts at Sgt. Hirsch, "Why you saying that?" She turns to § 87(2)(b) and says, "Don't say nothing." § 87(2)(b) turns and faces § 87(2)(b). He leans and appears to reach towards him with his arm, but it is not possible to see what he is doing. He pulls back. § 87(2)(b) says to § 87(2)(b) "Because he's ridiculous," and then something inaudible and, "Because he's trying to entice you." She turns back to Sgt. Hirsch and says something inaudible, which includes, "disrespectful." § 87(2)(b) is recording officers on his cell phone.

At 00:03:50, officers and people disperse from the door, but continue standing around in the backyard. § 87(2)(b) and § 87(2)(b) are yelling at officers in general.

At 00:05:45, PO Thomas, who has been out of view, chatting with § 87(2)(b) is now visible in front of the camera. § 87(2)(b) holds her identification and walks out of view. She comes back into view and talks on the phone, telling someone that she gave her identification to officers, who entered her yard because they said someone ran into the house.

The scene is calm, until 00:08:42, when § 87(2)(b) yells at § 87(2)(b) who is out of view, "Don't engage." Then the scene is calm again. Only § 87(2)(b) and § 87(2)(b) are in front of the door to the house. At least six officers are standing in the backyard, closer to the gate.

At 00:11:08, an officer has a conversation with § 87(2)(b) in which he says that she and § 87(2)(b) will be arrested if officers cannot go into the house. The conversation happens in the background. The officer is not visible. § 87(2)(b) says to an officer who is out of view, "I touched you? I didn't touch you." At 00:11:43, the camera moves and Lt. Abbasi and Lt. Passolo are visible.

At 00:12:38, § 87(2)(b) says to PO Garner and PO Sitzman, "This is crazy. You guys should be worried about guns up the block. This is niggers cooking out."

At 00:12:46, § 87(2)(b) enters the backyard and says something inaudible. At 00:14:03, Lt. Abbasi asks to speak with § 87(2)(b). They step to the side with Lt. Passolo. Their conversation is inaudible. At 00:15:40, § 87(2)(b) walks to them and joins their conversation. She shouts, "Nobody ran into the house." The rest of the conversation is inaudible, except § 87(2)(b) saying that she will not allow officers into her house.

At 00:19:15, § 87(2)(b) tells everyone in the house to come outside because, "my sister's not going down for nobody." At 00:20:42, Lt. Abbasi signals for officers to follow him. Several people say, "Not everybody." People say that four officers are entering the house, though their entry is not visible. Once officers are inside, § 87(2)(b) stands with his back to the door, at 00:21:08. PO Thomas approaches the door and opens it. § 87(2)(b) shouts, "What are you doing?" Lt. Abbasi is visible on the other side of the glass door. § 87(2)(b) runs towards PO Thomas. When he is inches from PO Thomas, PO Sitzman pulls § 87(2)(b) back, as PO Thomas pushes the center of § 87(2)(b)'s chest with his left hand. Many people and officers shout inaudibly. Lt. Abbasi goes back outside, and the door is closed. Then he opens the door and starts to go back inside, while PO Thomas explains something to § 87(2)(b) who is also standing in the doorway. § 87(2)(b) yells at PO Thomas. People tell § 87(2)(b) to calm down. Lt. Abbasi and § 87(2)(b) go back into the house. The door stays open. PO Thomas and Sgt. Hirsch stand by the door. People stand around quietly while officers are inside the house.

At 00:26:36, a male is holding the camera. He calls a male over and says quietly, "They gonna get Ri." The other male says, "No they not. They inside?" The male with the camera says, "Yea. That's what they're saying." The other male says, "Tight." The male with the camera says,

"But if he hiding, he good." The other male says, "I don't know how good he is." The male with the camera says, "He'll be alright."

At 00:29:44, Lt. Abbassi exits the house, followed by Lt. Passolo, PO Garner, and § 87(2)(b). Officers continue to stand around in the backyard, and people chat about making hamburgers (encl. 80d-e).

Video 3

Videos 3-5 were provided by § 87(2)(b) on July 26, 2013 (encl. 43). The videos were taken by an unidentified guest at § 87(2)(b) on July 4, 2013. Video 3 begins with two police officers standing with a male in a blue shirt. There are voices yelling.

At 00:00:07, § 87(2)(b) appears in a red shirt. She is shouting, § 87(2)(b) is standing next to her in a white tank top.

At 00:00:15, a female voice says, "Why are they locking him up?" A male voice says, "Don't argue with them."

At 00:00:21, the voice of § 87(2)(b) says, "Whoever the fuck was in here. Everyone clear because my brother's not going down."

At 00:01:04, a male voice says, "They say that § 87(2)(b) and § 87(2)(b) put their hands on him. That's why they're locking him up. Because they say that § 87(2)(b) was on him when they entered the gate."

From 00:01:40 to 00:02:12, voices, including § 87(2)(b)s, are protesting § 87(2)(b)s arrest.

At 00:02:12, a police van drives away.

From 00:02:14 to 00:03:09, civilians argue that § 87(2)(b) should not have been arrested because no male ran into the house. Officers insist that someone ran into the house.

At 00:03:10, a male officer wearing a black T-shirt, identified by the investigation as Lt. Passolo, states, "We didn't chase a ghost. We chased a young male who was running in there."

Video 4 begins with a black male wearing a grey T-shirt and basketball shorts, as well as several children, sitting and standing under a tent. After several seconds, the camera moves across the backyard to show a bald white male officer in plainclothes (identified by the investigation as Lt. Passolo), a uniformed officer (PO Garner identified this officer as himself), a black male in a blue T-shirt, and several other individuals standing around § 87(2)(b) who is standing with his hands on his stomach. § 87(2)(b) is right behind the male in the blue T-shirt.

At 00:00:15, § 87(2)(b) leans away from Lt. Passolo and says to him loudly, "I said I was going to get you my ID." He begins to shout, "Officer," when suddenly he goes down into the group, as the rest of the group bends down, shouting.

Video 5 begins with a female police officer and a male officer in uniform arguing with § 87(2)(b) and a black male with dreadlocks, who are standing in front of the back door. A black male in a gray T-shirt, a heavy black male in a yellow polo shirt, a little boy, a female with red hair, a male officer, a female officer come on scene and watch. The conversation is inaudible.

NYPD Document

NYPD Event Chronology

At 6:26 p.m. on July 4, 2013, a sergeant from the 81st Precinct put a call over the radio regarding a disorderly group outside at § 87(2)(b) and § 87(2)(b) (encl. 126-127). At 6:27 p.m., the Conditions sergeant and other sergeant were on the scene and said no further units.

At 7:06 p.m., the 81st Precinct sergeant stated that one person was arrested. At 9:15 p.m., the event was closed.

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- [§ 87(2)(b)] and [§ 87(2)(b)] have not filed a Notice of Claim with the City of New York as of November 13, 2013 with regard to the incident (encl. 161).

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)] or [§ 87(2)(b)] (encl. 18-22)

Subject Officers CCRB History

- PO Ross Garner has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 10).
- Sgt. Forrest Hirsch has been a member of service for seven years and there are two substantiated CCRB allegations against him:
 - In CCRB case 201016064, allegations of frisk and stop were substantiated. The board recommended charges and Sgt. Hirsch received instructions.
 - There are two prior offensive language allegations against Sgt. Hirsch. In CCRB case 201102248, an offensive language allegation was unfounded. In CCRB case 201306471, an offensive language allegation was unsubstantiated (encl. 11-12).
- PO Malerie Treuman has been a member of service for eight years and there are no substantiated CCRB allegations against her (encl. 13).
- PO Jonathan Thomas has been a member of service for five years and there are no substantiated CCRB allegations against him (encl. 14).
- Lt. Thomas Passolo has been a member of service for 14 years and there is one substantiated CCRB allegation against him (encl. 15):
 - In CCRB case number 201212803, a strip search allegation was substantiated. The board recommended charges. The case is currently with the CCRB Administrative Prosecution Unit.
- Lt. Isa Abbassi has been a member of service for 17 years and there are no substantiated CCRB allegations against him (encl. 16-17).
- PO William Sitzman has been a member of service for eight years and there are no substantiated CCRB allegations against him (encl. 17a).

Conclusion

Allegations Not Pleaded

The investigation determined that PO Sitzman and PO Treuman were among the first

officers to enter the backyard. However, entry allegations are not pleaded against them because they were supervised by Sgt. Hirsch and led by PO Garner.

Although § 87(2)(b) alleged that PO Sitzman spoke offensively to § 87(2)(b) identified Sgt. Hirsch as the only officer who spoke offensively to him.

§ 87(2)(g)
§ 87(2)(b) alleged that a white male officer attempted to enter the house while officers were inside. She said that when § 87(2)(b) stopped the officer, the officer pushed § 87(2)(b)'s chest or shoulder. The investigation determined that this officer was Sgt. Hirsch based on Sgt. Hirsch's testimony that he put his foot in the door to prevent people from closing it and people thought he was trying to enter the house. § 87(2)(g)

Identification of Subject Officers

- PO Ross Garner testified that he was the first officer to enter the backyard of § 87(2)(b). He stated that he entered the house. § 87(2)(g)
- Sgt. Forrest Hirsch said that he led the SNEU team and was the second officer to enter the backyard. § 87(2)(b) said Sgt. Hirsch spoke offensively. § 87(2)(b) read Sgt. Hirsch's name on his uniform and provided a description that matched Sgt. Hirsch's pedigree information. § 87(2)(g)
- § 87(2)(b) stated that PO Malerie Treuman, whose name he read on her uniform, spoke rudely to him and § 87(2)(b) about the music. PO Treuman acknowledged speaking to § 87(2)(b) and § 87(2)(b) about the music. § 87(2)(g)
- § 87(2)(b) alleged that the heavy, white, bald, male officer in uniform, 5'5" tall, who opened the garbage can also opened and put his hand in the food containers and grill. PO William Sitzman acknowledged opening the garbage can. He is a bald white male, 250 pounds and 5'8" tall. § 87(2)(g)
- Lt. Isa Abbassi said that he told § 87(2)(b) and § 87(2)(b) that § 87(2)(b) would be arrested if officers continued to be blocked from entering the house. He also said that he entered and searched the house. § 87(2)(b) stated that the same officer who took her identification and threatened to arrest her also threatened to destroy her property. Lt. Abbassi stated that he was the officer who took § 87(2)(b)'s identification. § 87(2)(g)
- Lt. Thomas Passolo testified that he told § 87(2)(b) that § 87(2)(b) would be arrested if officers continued to be blocked from entering the house. He also said that he entered and searched the house. § 87(2)(g)
- PO Jonathan Thomas stated that he placed his foot in the backdoor while officers were inside. He said that he had an argument about closing the door. § 87(2)(b) stated that PO Thomas, whose name he read on his uniform, tried to enter the house and pushed and spoke rudely towards him. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A- Abuse of authority: PO Ross Garner entered § 87(2)(b) in Brooklyn.

Allegation B- Abuse of authority: Sgt. Forrest Hirsch entered § 87(2)(b) in Brooklyn.

Based on their statements, it is undisputed that PO Garner and Sgt. Hirsch led PO

Treuman and PO Sitzman into the backyard of § 87(2)(b) in pursuit of a male they saw holding a brown cigarette on the sidewalk. It is undisputed that the backyard was privately owned by the § 87(2)(b) family and was surrounded by an opaque fence that was approximately seven feet tall. The male and the officers entered the backyard through a door in the fence. It is undisputed that, upon entering, the officers were confronted by § 87(2)(b) and § 87(2)(b) who told the officers not to enter because it was private property.

The curtilage of a house is protected by the Fourth Amendment of the U.S. Constitution and cannot be entered without a warrant or one of the recognized exceptions to the warrant requirement. People v. Saurini, 201 A.D.2d 869 (N.Y. App. Div. 4th Dep't. 1994) (encl. 8-9).

Four factors are considered in determining whether an area is within the curtilage of a home: (1) its proximity to the house; (2) whether it is within an enclosure that surrounds the house; (3) the nature of the uses to which it is put; (4) and the steps that the resident takes to protect the area from observation. People v. Vernon, B., 38 Misc. 3d 343 (Crim. Ct. Kings Cty. 2012) (encl. M-Q). Once an area is determined to be the curtilage of a house, an officer's entry must be justified by a recognized exception to the warrant requirement.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

The yard is within an enclosure which extends from the edge of the house to the building on the other side of the driveway, separating the yard and rear of the house from the street. This enclosure is a 7-foot-tall fence, made opaque by white paneling and locked with a padlock, according to § 87(2)(b). There is a small door in the fence and barbed wire on top. § 87(2)(g)

§ 87(2)(g)

The two pertinent recognized exceptions to the warrant requirement are exigent circumstances and hot pursuit. Six factors must be considered in determining whether exigent circumstances are present: (1) the gravity or violent nature of the offense with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry. These factors apply, provided that there is probable cause. People v. McBride, 14 N.Y.3d 440 (2010) (encl. 1-7).

Observation of a suspect rolling and licking a three- or four-inch long brown cigar wrapper affords an officer a common-law right of inquiry to question that person. People v. Sanchez, 8 A.D.3d 504 (N.Y. App. Div. 2nd Dep't. 2004) (encl. 9c-d).

Under the doctrine of hot pursuit, a suspect cannot defeat an otherwise lawful arrest which has been set in motion in a public place by the expedient of escaping into a private place. People v. Skinner, 284 A.D.2d 906 (N.Y. App. Div. 4th Dep't. 2001) (encl. 9b).

PO Garner and Sgt. Hirsch stated that the only reason they walked through the door in the fence and entered the backyard was to apprehend the male they had seen with the marijuana cigarette. They did not suspect the male of committing any crime besides criminal possession of marijuana. They did not see or smell marijuana, but they believed the cigarette contained marijuana because of its packaging. They did not confirm that the cigarette contained marijuana until PO Sitzman recovered the cigarette, after officers entered the backyard. § 87(2)(g)

offensive remarks to § 87(2)(b) based upon race. Sgt. Hirsch recalled speaking with § 87(2)(b) but denied making any offensive remarks. No officer heard Sgt. Hirsch make such remarks. § 87(2)(b) testified that he heard PO Sitzman make offensive remarks to § 87(2)(b) and § 87(2)(b) did not state that they heard Sgt. Hirsch make offensive remarks.

§ 87(2)(b) alleged that Sgt. Hirsch said to him, “Fucking nigger,” “You coon,” “You gorilla,” “You monkey,” and he made monkey noises. § 87(2)(b) and § 87(2)(b) each alleged that Sgt. Hirsch called § 87(2)(b) one or more of those slurs. § 87(2)(b) also alleged that Sgt. Hirsch beat his chest like a monkey, but no other civilian made that allegation.

Video 2, provided by § 87(2)(b) depicts § 87(2)(b) and § 87(2)(b) standing with their backs to the backdoor, as Sgt. Hirsch stands in front of them and says something inaudible in § 87(2)(b)'s direction. § 87(2)(b) is beside them, with his back to Sgt. Hirsch. Many people are shouting, so it is not possible to hear what Sgt. Hirsch says, but § 87(2)(b) shouts at him, “Why you saying that?” She turns to § 87(2)(b) and says, “Don’t say nothing [inaudible] because he’s ridiculous [inaudible] because he’s trying to entice you.” She says something inaudible to Sgt. Hirsch that includes the word, “disrespectful.” § 87(2)(b) turns around and reaches towards § 87(2)(b) but it is not possible to see what he is doing. § 87(2)(b) is now out of view, behind § 87(2)(b) and an unidentified female are nearby, but are not facing Sgt. Hirsch. Other civilians are out of view of the camera. There is an open window to § 87(2)(b)'s right.

§ 87(2)(g)
§ 87(2)(b) testified that he was standing in front of the backdoor with § 87(2)(b) and § 87(2)(b) though he did not mention § 87(2)(b) § 87(2)(b) testified that she was standing with § 87(2)(b) and § 87(2)(b) § 87(2)(b) testified that she was standing inside the kitchen window.

§ 87(2)(b) and § 87(2)(b) testified that after Sgt. Hirsch spoke offensively, § 87(2)(b) put his hand over § 87(2)(b)'s mouth. This may be the motion depicted in the video.

§ 87(2)(b) and § 87(2)(b) testified that in response to Sgt. Hirsch’s offensive language, § 87(2)(b) chided him and told § 87(2)(b) not to respond. § 87(2)(b) testified that § 87(2)(b) responded to Sgt. Hirsch’s language by telling Sgt. Hirsch, “We’re not in that class of ignorance.” She told § 87(2)(b) to “show him that you are intelligent.” § 87(2)(b) testified that after Sgt. Hirsch spoke offensively, she said, “You will not be disrespectful. You will not say that.” She told § 87(2)(b) “Show him how intelligent you are. Please do not respond.” § 87(2)(b) testified that § 87(2)(b) shouted, “No. You are not going to do that.” § 87(2)(b) testified that after Sgt. Hirsch spoke offensively to § 87(2)(b) § 87(2)(b) said to Sgt. Hirsch, “You don’t need to say this.” § 87(2)(b) testified that after Sgt. Hirsch spoke offensively to § 87(2)(b) § 87(2)(b) told everyone to be quiet.

Only § 87(2)(b) § 87(2)(g) said that PO Sitzman, not Sgt. Hirsch, spoke offensively to § 87(2)(b) and that § 87(2)(b) was elsewhere.

In the video, the witnesses who did not hear the offensive language - § 87(2)(b) and § 87(2)(b) – were not standing near and facing Sgt. Hirsch. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Patrol Guide Procedure 203-10 prohibits the use of discourteous or disrespectful remarks regarding another person's race (encl. 9h-j).

§ 87(2)(g)

Allegation F- Abuse of authority: Lt. Isa Abbassi threatened to arrest § 87(2)(b)

Allegation G - Abuse of authority: Lt. Thomas Passolo threatened to arrest § 87(2)(b)

Based on statements provided by Lt. Abbassi, Lt. Passolo, § 87(2)(b) and § 87(2)(b) it is undisputed that Lt. Abbassi and Lt. Passolo told § 87(2)(b) that § 87(2)(b) would be arrested if officers were obstructed from entering the house. Lt. Abbassi stated that he also made this threat directly to § 87(2)(b) as captured in the audio recording.

According to New York Penal Law Code section 195.05, a person is guilty of obstructing governmental administration when he intentionally obstructs the administration of law or attempts to prevent a public servant from performing an official function by means of interference (encl. A).

An officer's conduct must be authorized for him to be engaged in an official function. People v. Lupinacci, 191 A.D.2d 589 (N.Y. App. Div. 2nd Dep't. 1993) (encl. 9a).

Lt. Abbassi and Lt. Passolo said that § 87(2)(b) could have been arrested for obstructing governmental administration, which they said she committed by shouting at the officers that they could not enter her house and by telling the people in the backyard not to let officers enter the house.

§ 87(2)(b) testified that she told officers not to go inside her house. § 87(2)(b) testified that § 87(2)(b) told people to block the door and not to allow officers into the house. § 87(2)(g)

§ 87(2)(g)

Allegation H- Abuse of authority: Lt. Isa Abbassi entered and searched § 87(2)(b)

in Brooklyn.

Allegation I- Abuse of authority: Lt. Thomas Passolo entered and searched § 87(2)(b)

in Brooklyn.

Based on their statements, it is undisputed that Lt. Abbassi, Lt. Passolo, Sgt. Hirsch, and PO Garner entered and searched § 87(2)(b). It is undisputed that § 87(2)(b) and

§ 87(2)(b) told them not to enter their house. It is undisputed § 87(2)(b) told the officers that they could enter the house only after Lt. Abbassi and Lt. Passolo told him that § 87(2)(b) would be arrested if officers were prevented from entering the house. During their statements, Lt. Abbassi and Lt. Passolo both explained that they were not asking § 87(2)(b) for consent to enter the house. They were, instead, informing him that officers would enter the house either with his cooperation or by arresting anyone who stood in their way.

Absent exigent circumstances or warrant, an officer may enter and search a private dwelling if the officer obtains a tenant's consent. The consent must be an unequivocal product of free will and may not stem from any official coercion. People v. Gonzalez, 39 N.Y.2d 122 (1976) (encl. B-H).

§ 87(2)(g)

§ 87(2)(g)

Allegation J- Abuse of authority: PO Jonathan Thomas entered § 87(2)(b) in Brooklyn.

Allegation K- Force: PO Jonathan Thomas used physical force against § 87(2)(b)

Allegation L- Discourtesy: PO Jonathan Thomas spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that, while officers were inside of the house, PO Thomas shouted that he was going in and told § 87(2)(b) to move, as he pulled her away from the door. § 87(2)(b) stated that he stood up and told PO Thomas to leave § 87(2)(b) alone, at which point PO Thomas pushed § 87(2)(b)'s chest with both hands and said, "Back the fuck up." § 87(2)(b) testified that PO Thomas then said he was going inside the house, but did not end up entering.

§ 87(2)(b) also testified that PO Thomas pulled her away from the door after she tried to close it, but she did not allege that PO Thomas pushed § 87(2)(b) or used profanity. § 87(2)(b) testified that PO Thomas tried to enter the house and that § 87(2)(b) and § 87(2)(b) told him not to. § 87(2)(b) stated that PO Thomas put his foot in the doorway to prevent it from being closed. § 87(2)(b) did not allege that PO Thomas pushed § 87(2)(b) or used profanity.

PO Thomas stated that, while officers were searching the house, civilians attempted to close the backdoor. PO Thomas said that, for the safety of the officers inside, he put his foot in the doorway to prevent it from being closed. He did not intend to enter the house. He said that a heavy-set black male pushed him, but he did not push back or use any profanity.

According to Lt. Abbassi, while officers were searching the house, he heard an altercation at the backdoor and went to find two black males pushing PO Thomas. Lt. Abbassi said that PO Thomas told them to "back up," but did not push back or use any profanity.

In the audio recording provided by § 87(2)(b) someone asks officers if they can shut the doors. A voice, which PO Thomas identified as his own, says, "No, we can't shut the door

because there are fellow officers inside.” § 87(2)(b) says, “I understand because it’s protocol because they gotta make sure they have a way to get back out. I totally get it. It’s ok.” It is unclear whether § 87(2)(b) consented to the door remaining open before or after PO Thomas put his foot in the door.

In the second video provided by § 87(2)(b) PO Thomas approaches the door and opens it. § 87(2)(b) runs towards PO Thomas, getting very close. PO Sitzman pulls § 87(2)(b) back as PO Thomas pushes § 87(2)(b)’s chest with his left hand. § 87(2)(b) and Lt. Abbassi exit the house. Many people and officers shout inaudibly. PO Thomas says something inaudible to § 87(2)(b) § 87(2)(b) and Lt. Abbassi go back into the house. The door stays open, and PO Thomas and Sgt. Hirsch stand by the door.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) PO Thomas’s intentions are not conveyed by the recordings. The recordings also did not capture PO Thomas saying, “Get back, or, “Get the fuck back.” Besides § 87(2)(b) no one alleged that PO Thomas used profanity. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation M- Abuse of authority: Lt. Isa Abbassi threatened to damage § 87(2)(b)

§ 87(2)(b)’s property.

§ 87(2)(b) alleged that, after exiting the house, Lt. Abbassi returned her identification to her and stated that the officers would leave, “But if we come back, if the music is turned up one notch higher, we will destroy your equipment...And we’re gonna come back and we’re gonna destroy your property.” § 87(2)(b) alleged that several officers continuously told § 87(2)(b) that they were going to come back, take the sound system, and “trash the place.”

Lt. Abbassi stated that he returned § 87(2)(b)’s identification, but he denied making these threats to § 87(2)(b) Besides § 87(2)(b) and § 87(2)(b) no civilian or officer heard Lt. Abbassi specifically make these threats. These threats were not captured in any recordings. § 87(2)(g)
§ 87(2)(g)

§ 87(4-b) § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date